

25STCV01928 25STCV01928

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-06-24

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Case Number: 25STCV01928 Hearing Date: June 24, 2026 Dept: 507

Tentative Ruling

Judge Nicholas F. Daum, Department 507

HEARING DATE: June 24, 2026 TRIAL DATE: NOT SET

CASE: Naira Soria v. Thompson's Auto and Truck Center Inc., et al.

CASE NO.: 25STCV01928

MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

MOVING PARTY: Plaintiff Naira Soria

RESPONDING PARTY(S): Thompson's Auto and Truck Center Inc., et al.

TENTATIVE RULING:

Plaintiff's Motion for Attorneys' Fees is GRANTED IN PART.

Attorneys' fees in the amount of \$8,248.50 are awarded.

Costs are awarded in the amount of \$1,884.45.

The fees and costs are to be paid within 60 days of the date of this order.

Moving party to give notice.

BACKGROUND

This is a standard Song-Beverly or “lemon law” case brought under Civil Code section 1794. Ultimately, the case settled. Standard disclosures were provided, and the case was resolved reasonably promptly.

There is no dispute that Plaintiff is the prevailing party. Thus, under clear law, Plaintiff is entitled to an award of reasonable attorneys’ fees. (Civ. Code, § 1794(d).) Those fees must not be tied to or limited by the amount Plaintiff received in settlement. (See *Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 251.)

The parties disagree about the reasonableness of the fees and costs claimed.

Plaintiff asks for fees and costs as follows: (a) \$19,583.50 for attorney work done by 16 separate attorneys and paralegals; (b) a “multiplier” of .2, adding an additional \$3,916.70 in fees; and (c) \$1,884.45 in costs and expenses. GM challenges much of the time expended as unreasonable or unnecessary. The Court largely agrees with GM.

DISCUSSION:

A prevailing plaintiff in a Song Beverly Act case is entitled to “a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ Code., § 1794, subd. (d).) “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.” (*Mikhaeilpoor v. BMW of N. Am., LLC*, supra, 48 Cal.App.5th at p. 247 [quotation marks omitted].)

In awarding these fees, the Court applies the “lodestar” method. That requires the Court to (a) determine the actual time expended and then (b) determine whether under all the circumstances of the case the amount of actual time expended, and the monetary charge (generally, the billing rates of the attorneys involved) were reasonable. (Id.)

Reasonableness of the Lodestar Calculation

Plaintiff has submitted evidence of billing records. Plaintiff seeks payment based on a lodestar amount, calculated as the time billed multiplied by the hourly rates of the attorneys involved.

The Court has carefully considered the moving and opposition papers to see if the time billed was reasonable. GM (properly) does not challenge the attorney rates charged by Plaintiff’s attorneys.

A. Attorney Time

The Court is highly familiar with the work of other lemon law lawyers bringing similar cases. The volume of other, similar lemon law cases throughout California is staggering. Accordingly, by necessity, much of any plaintiff’s attorney’s work in this and similar cases involves using essentially form or template pleadings and documents.

Indeed, in the Court’s view, this and similar lemon-law cases are generally (and, in the Court’s view reasonably) arranged along almost industrial lines, so as to make the work manageable for the attorneys. Given the volume of lemon law cases in these law firms, they must be.

Plaintiff's fee request does not reasonably reflect the routinized nature of the work performed, Usefully, GM submitted a declaration identifying specific issues with Plaintiff's billing requests. The Court agrees with many of GM's critiques of the specific billing requests, and reduces fees as shown below.

The Court's reasons for finding Plaintiffs' billing excessive are set forth below.

Date

Claimed Hours/Hourly Rate

Time after reductions by Court

Reason for Reduction

Dollar Amount of Reduction (Requested Amount) -(Reduced Time*Rate)

1/23/25

\$4500 (flat fee)

\$2250 (flat fee)

The flat fee for pretrial investigation represents 9 hours of attorney time at \$500/hour. This is wildly excessive. Given the standard nature of lemon law cases, no more than 4.5 hours is appropriate

\$2250

2/10/25

2.0/\$500

.5

Excessive time spent preparing form discovery requests used in standard cases.

\$750.00

5/15/25

.7/\$175

.2

No need to spend this amount of time on a template opposition

\$87.50

6/20/25, 6/25/25, 6/26/25

2.3/\$450

2.3

The Court agrees with GM that this amount of preparation time for a standard deposition was wholly unnecessary

\$1,035.00

6/23/25, 6/24/25, 6/25/25

3.5/\$675

2.0

Excess time spent by an experienced attorney on a deposition of a PMQ on topics that should be standardized across the litigation.

\$1,012.50

10/16/25

.2/\$90

.1

No need for more time to draft a form notice of settlement order.

\$45.00

12/15/25

2.7/400

.2

There is no need to bill this amount for an OSC re settlement hearing. First, there is essentially no possibility that counsel did no other work while waiting for this hearing to occur. Second, the hearing itself was likely unnecessary.

\$1,000.00

2/13/26

2.7/\$475

.3

Excessive amount to draft form fee motion

\$1,187.50

3/3/26, 3/4/26

3.2/\$575

.3

Excessive time spent to finalize form motion for fees and costs

\$1,667.50

TBD

5/\$575

1

Excessive time for preparing form reply brief and attending hearing

\$2,300.00

Based on the foregoing analysis, the total amount of the Court's reduction (based on unreasonableness) to incurred and anticipated fees is \$11,335.00.

The Court therefore reduces the total amount of fees requested from \$19,583.50 to \$8,248.50.

B. Multiplier

The Court declines to award a multiplier. Nothing in this case suggests that it was particularly unusual or particularly risky. While the case was brought on a contingency-fee basis, the risks of that contingent representation were limited. By law, the Court's fee award cannot be tied to the amount recovered by a plaintiff. That means that, so long as Plaintiff achieved enough success on her lemon-law claim to make her a prevailing party (which, given the particular nature of Plaintiff's claims, was always likely) Plaintiff's counsel knew or should have known that counsel would be entitled to recover fees for time reasonably expended. And, having carefully reviewed the record, the Court sees nothing particularly unusual, innovative, or difficult in the case that would justify awarding a multiplier.

Costs

The Court declines GM's request to tax certain costs. The transcription fees for the deposition of Jacob Doss are reasonable. Filing fees are generally recoverable as costs.

CONCLUSION:

Plaintiff's Motion for Attorneys' Fees is GRANTED IN PART.

Attorneys' fees in the amount of \$8,248.50 are awarded.

Costs are awarded in the amount of \$1,884.45.

The fees and costs are to be paid within 60 days of the date of this order.

Moving party to give notice.

IT IS SO ORDERED.

Dated: June 24, 2026 _____

Nicholas F. Daum

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.